



Appeal Decision

Site visit made on 07 August 2026

by R Cahalane BA(Hons) MSc MRTPI

an Inspector appointed by the Secretary of State

Decision date: 11 September 2026

Appeal Ref: 6011101

Former Gas Holder Site, Cranbourne Road, Gosport PO12 1RL

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Joel Rothbart (Old Capital Management Ltd) against the decision of Gosport Borough Council.
 - The application Ref is 26/00104/FULL.
 - The development proposed is change of use from former gas holder land (sui generis) to open storage (Class B8).
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. In the above banner heading, the development description is taken from the decision notice instead of the application form, as it is more concise and references the existing and proposed use classes. I have determined the appeal accordingly, while also considering the information in the application form description. On 17 August 2026, the Government issued a revised version of the National Planning Policy Framework (the Framework). As these revisions could affect the issues in this case, the Council and the appellant were invited to make further comments. My decision reflects this latest Framework and any responses received.

Main Issue

3. The main issue is the effect of the proposed development on highway safety, with particular regard to vehicular access to and from the appeal site, and along the surrounding road network.

Reasons

4. The appeal site covers a large area enclosed by fencing and containing hardstanding. The evidence before me does not indicate exactly when its gas works use ceased, although prior approval was given in 2022 for demolition of gas holders and associated structures. I also understand that the use was longstanding, and included a large factory building, and three gasometers dating back to 1909.
5. The proposed change of use to open storage could potentially include vehicular, container or materials storage. The appellant also indicates that traffic generation could vary drastically dependent on end users, ranging from storage of construction material to a rapid turnover logistics yard. Having regard to this range, the site's size, and in the absence of cogent information demonstrating otherwise, the open storage use as proposed could generate significant levels of travel demand.

6. Policy LP22 of the Gosport Borough Local Plan 2011-2029 (GBLP) (adopted 2015) sets out that development proposals that are likely to generate significant levels of travel demand will be permitted, provided that, amongst other things, Transport Statements or Transport Assessments are submitted. Such requirements are needed in order to evaluate transport impacts.
7. I accept that the previous gas works use likely involved a notable frequency of staff and vehicle movements to and from the appeal site across a significant time period. However, there is no technical evidence before me, such as a Transport Statement or Assessment, outlining the likely nature and quantity of such movements associated with that use, and in comparison, the anticipated impacts on the road network and highway safety arising from the proposed use.
8. It is put to me that the above amounts to an impossible burden of proof. However, in my experience, transport assessments undertaken by suitably qualified professionals could quantify the above matters in a robust, focussed and non-arbitrary manner. For example, by utilising industry standard guidance and information, such as the Trip Rate Information Computer System (TRICS) database. Even though open storage is a broad classification, the above process, and consultation with the Local Highway Authority, would provide a properly informed assessment of the likely highway safety risks and road network impacts.
9. Such a process would also reliably inform the wording and requirements of bespoke planning conditions, which could include specific restrictions. The proposal is however not supported by sufficiently precise information setting out the likely range in the nature and amount of traffic generation and movements entering and exiting the appeal site, and how that relates to the previous gas works use.
10. GBLP policy LP23 requires development proposals to, amongst other things, make adequate provision for an appropriate range of vehicles to access the site. Dock Road, along with the section of Cranbourne Road leading to the appeal site, contain several vehicular accesses to various commercial sites.
11. There is however a sharp right-hand turn immediately before the site's vehicular entrance. In the absence of technical details such as highway vehicular tracking plans, the above route to this site could make it hazardous or impossible for larger vehicles such as articulated lorries to pass each other. This could result in such larger vehicles needing to carry out reversing manoeuvres on the highway.
12. The abovementioned route is also near a residential area, comprising mainly of terraced residential properties with no off-street parking. Although my site visit was a snapshot in time during a weekday period, I observed vehicles parking partially on footways, including on double yellow lines along both sides of Cranbourne Road leading to the site. Larger commercial vehicles may access the site via other routes serving residential properties, such as Thornbrake Road and Mayfield Road, where I also observed carriageway widths restricted by vehicles parked to each side.
13. Having regard to all the above, there are real non-hypothetical risks in highway safety terms, in respect of larger vehicle reversing manoeuvres and associated visibility obstructions. For the above reasons, I conclude that it has not been adequately demonstrated that the change of use would mitigate adverse highway safety impacts, with particular regard to vehicular access to and from the appeal site, and along the surrounding road network. The proposal thus fundamentally

conflicts with GBLP policies LP22 and LP23, the relevant requirements of which are already set out above.

14. A planning condition could restrict use to one within Class B8 of the Town and Country Planning (Use Classes) Order 1987. It is also put to me that after implementation of the proposed use, any subsequent change in specific storage type, vehicle profile or operator could be subject to a further condition requiring such change(s) requiring a new planning application or discharge of condition application. However, given my above conclusion, such a condition would not be reasonable, as based on the evidence before me, I cannot rule out real world highway safety risks arising from implementation of the appeal proposal.

Other matters

15. The appellant cites an appeal case¹ as being a precedent for blanket Class B8 open storage to be allowed. However, highway safety did not form a main issue for consideration under that appeal. In any event, that scheme would have been determined on its own evidence and site-specific merits, and thus it does not justify allowing this appeal. The lack of physical alterations or topography changes proposed, and avoidance of a net loss of biodiversity within the site, are matters which neither weigh in favour nor against allowing this appeal.

Planning Balance

16. The extent and significance of conflict with GBLP policies LP22 and LP23 that I have identified amounts to conflict with the development plan as a whole. The Framework's national decision-making policy (NDMP) S3 sets out that decisions on development proposals should apply a presumption in favour of sustainable development. This means that NDMP S4 should be applied when considering proposals within settlements (such as Gosport).
17. NDMP S4 sets out that development proposals within settlements should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the Framework's NDMPs. In applying NDMP S4, the circumstances in which the benefits of approving development are likely to be substantially outweighed by adverse effects include (but are not restricted to) situations where the development proposal would, amongst other things, fail to comply with one of the NDMPs which state that development proposals should be refused in specific circumstances.
18. NDMP E2 states that substantial weight should be given to the economic benefits of proposals for commercial development which allow businesses to invest, expand and/or adapt. The speculative nature of the proposal makes it difficult to precisely quantify such benefits. However, even when giving substantial weight to the economic benefits that would inevitably arise from the proposal, NDMP TR6 sets out that development proposals should be refused if they would have an unacceptable impact on highway safety.
19. The highway safety risks that I have identified could impact the safety of pedestrians and other vulnerable highway users. These risks are such that in this case, the benefits of approving the appeal development are substantially outweighed by adverse effects.

¹ Appeal Ref: APP/K3605/W/25/3375242, within Elmbridge Borough Council

Conclusion

20. For the reasons given above, the proposal conflicts with the development plan as a whole and the material considerations before me, including the Framework, do not indicate that a decision should be made otherwise than in accordance with the development plan. The appeal is therefore dismissed.

R Cahalane

INSPECTOR